Ohio Bar®
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SB 174 (Gavarone, Hicks-Hudson)

An Overdue Update That Puts Children and Parents First

Children thrive when both parents are supported and play an active role in their lives. SB 174 ensures that courts have clear, updated standards—reinforced with transparency and accountability—to help advance these principles.





An Overdue Update That Has Been 25 Years in the Making

- Ohio's parenting laws have not undergone a meaningful update in generations; SB 174 finally brings them in line with today's family realities and child-development research.
- It is the product of *decades* of bipartisan work, beginning with the 1999 Ohio Task Force on Family Law and Children and continuing through years of refinement by judges, practitioners, children's advocates and statewide stakeholders.

Legislation That Strengthens, Not Weakens, the Role of Parents

- SB 174 explicitly reinforces the longstanding principle that children benefit from meaningful relationships with both parents, with a priority on children's safety and best interests. Courts cannot give preference to a parent because of their financial status or gender.
- Parental authority is preserved. Parents can submit their own agreed parenting plan, separate plans for judicial comparison or rely on the judge if they cannot agree. Judges do not displace parents—they step in only when parents are in conflict or when a child's safety or best interest demands it.
- Under SB 174, parents have a new pathway to increase their parenting time. Current law makes it hard for parents whose children do not live with to revise parenting plans and increase their parenting time. This bill improves that by creating a new, easier process for revising parenting plans so children can more easily benefit from having more time with both parents.

The Best Interests of Children Remain at the Center of Decisions

- SB 174 clarifies and expands the "best interest" factors so that courts evaluate cases based on real-world needs: a child's safety, stability, developmental readiness, parents' cooperation and each parent's ability to meet daily needs. It also restricts from considering one "best interest" factor to the exclusion of others.
- This is not a shift toward government control—it is a clarification of the child-focused standards courts must already follow.

The Role of Judges Is Defined When Parents Cannot Agree

- Judges are not given new arbitrary authority. Instead, their role is defined, with increased transparency, guardrails and accountability for those instances when parents cannot agree.
- Equal parenting time is preferred, and if a judge denies a request, they must now explain why—in writing—based on safety, best interest or other good cause. This reduces and limits judicial discretion, not expands it.
- Contrary to criticisms, SB 174 does not impose a single, state-designed parenting plan. Parents remain fully empowered to craft individualized plans—courts intervene only to protect children's best interests or when parents cannot reach agreement.

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More than 90 organizations support S.B. 174

Statewide Organizations

Ohio Domestic Violence Network

Groundwork Ohio

Ohio Judicial Conference

Ohio Chapter of the International Association of Forensic Nurses

Ohio Poverty Law Center

Ohio NOW

Ohio Association of Juvenile Court Judges

Ohio Alliance to End Sexual Violence

Ohio Victim Witness Association

Ohio Association of Domestic Relations Judges

Buckeye Region Anti-Violence Organization (BRAVO)

Ohio State Bar Association

National Association of Social Workers—Ohio Chapter

Community Endeavors Foundation, Inc.

Ohio Association of Magistrates

American Academy of Matrimonial Attorneys—Ohio Chapter

Equitas Health

Ohio Crime Victim Justice Center

Ohio Network of Children's Advocacy Centers

Local and Regional Organizations

The Center for Family Safety and Healing / *Franklin Co.*

LSS CHOICES for Victims of Domestic Violence / *Franklin Co.*

Advocating Opportunity / *Lucas and Franklin Cos.*

Hope & Healing Survivor Resource Center—Battered Women's Shelter & Rape Crisis Center / *Summit and Medina Cos.*

Family Crisis Network—Our Home / *Mercer Co.*

YWCA of Van Wert County / *Van Wert Co.*

Crisis Care Line / *Van Wert Co.*

First Step / *Seneca and Sandusky Cos.*

The Cocoon / *Wood Co.*

Soteria House & New Directions of TNC / *Logan Co.*

Southern Ohio Task Force on Domestic Violence / *Scioto Co.*

Survivor Advocacy Outreach Program / *Athens, Meigs, Perry, Gallia, Hocking, Morgan and Vinton Cos.*

Sarah's Friends, Inc. / *Williams Co.*

The Center for Child and Family Advocacy Inc. House of Ruth / *Henry and Defiance Cos.*

SART Clinic of Northwest Ohio / *Fulton Co.*

The Domestic Violence Shelter, Inc. / *Richland Co.*

Women Helping Women / *Hamilton Co.*

Homesafe Inc. / *Ashtabula Co.*

Eve / *Washington Co.*

WomenSafe / *Geauga Co.*

Safe on Main / *Warren Co.*

Someplace Safe / *Trumbull Co.*

Safer Futures / *Portage Co.*

Alliance Area Domestic Violence Shelter / *Stark Co.*

COMPASS Family & Community Services, Sojourner House / *Mahoning Co.*

Family Abuse Shelter of Miami Co. / *Miami Co.*

Jewish Family Service Association of Cleveland / *Cuyahoga Co.*

Lorain County Safe Harbor / *Lorain Co.*

New Directions / *Knox Co.*

Domestic Violence Project, Inc. / *Stark Co.*

YWCA Dayton / *Montgomery and Preble Cos.*

Turning Point / *Marion, Delaware, Wyandot, Morrow, Crawford and Union Cos.*

Project Woman / *Clark, Champaign and Madison Cos.*

The Woodlands The Center for New Beginnings / *Licking Co.*

Asian Services in Action / *Summit and Cuyahoga Cos.*

Tri-County Help Center / *Monroe, Belmont and Harrison Cos.*

Transitions / *Muskingum Co.*

New Choices / *Shelby Co.*

YWCA of Northwest Ohio / *Lucas Co.*

Forbes House / *Lake Co.*

Journey Center for Safety & Healing / *Cuyahoga Co.*

Auglaize County Crisis Center, Inc. / *Auglaize Co.*

YWCA Hamilton / *Butler Co.*

Artemis Center / *Montgomery Co.*

My Sister's Place / *Athens Co.*

Open Arms Domestic Violence and Rape Crisis Center / *Hancock Co.*

Ohio Guidestone / *Tuscarawas and Carroll Cos.*

The Lighthouse Inc. / *Fairfield Co.*

Crossroads Crisis Center / *Allen Co.*

Bethany House / *Lucas Co.*

Shepherd's House / *Vinton Co.*

Crime Victim Services / *Allen and Putnam Cos.*

Peace House / *Fayette Co.*

YWCA Greater Cincinnati / *Hamilton, Clermont, Brown and Adams Cos.*

Haven House / *Pickaway Co.*

Violence Free Futures / *Greene Co.*

Asian American Community Services / *Franklin Co.*

Family and Child Abuse Prevention Center—Children's Advocacy Center / *Lucas Co.*

Ross County Coalition Against Domestic Violence / *Ross Co.*

ETSS / *Franklin Co.*

A.L.I.V.E. / *Jefferson Co.*

Christina House / *Columbiana Co.*

OneEighty / *Wayne and Holmes Co.*

Shelter From Violence / *Darke Co.*

Square One / *Gallia Co.*

Safe Harbour Domestic Violence Shelter / *Erie Co.*

Alternatives to Violence Center / *Highland and Clinton Cos.*

ASHA-Ray of Hope / *Franklin Co.*

Rape Crisis and Domestic Violence Safe Haven / *Ashland Co.*

Alta Behavioral Healthcare / *Mahoning and Trumbull Cos.*

Casa de Paz / *Hamilton Co.*

Foundations for Families / *Franklin Co.*

Healthy Fathering Collaborative of Greater Cleveland / *Cuyahoga Co.*